LEASE AMENDMENT

Fairmont Jasper Business Park | Grand Rapids, MI

DRAFT

Landlord	Fairmont Jasper Business Park Owner LLC
Tenant	Fairway Manufacturing
Premises	Suite 13130, Fairmont Jasper Business Park
Amendment Date	November 1, 2023
Amendment No.	45

1. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Fairmont Jasper Business Park, 2763 Airport Parkway, Grand Rapids, MI 60119. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

2. Term. The term of this Lease shall be 7 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

3. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

4. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

5. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 45 months of Base Rent, to be held without interest. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

6. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

7. Maintenance and Repairs. Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

8. Alterations. Tenant shall not make any alterations costing more than $298,000 without Landlord's prior written consent, which shall not be unreasonably withheld. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

9. Insurance and Indemnity. Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

10. Assignment and Subletting. Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

11. Default and Remedies. If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

12. Renewal Option. Tenant shall have 44 option(s) to renew for 4 years each at the then-prevailing market rent upon at least nine months' notice. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

13. Subordination and Estoppel. This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

14. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Fairmont Jasper Business Park, 2763 Airport Parkway, Grand Rapids, MI 60119. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

15. Term. The term of this Lease shall be 7 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

DRAFT

16. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

17. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI. Time is of the essence with respect to each and every provision of this instrument.

18. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 11 months of Base Rent, to be held without interest. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

19. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

20. Maintenance and Repairs. Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

21. Alterations. Tenant shall not make any alterations costing more than $161,000 without Landlord's prior written consent, which shall not be unreasonably withheld. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

22. Insurance and Indemnity. Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

23. Assignment and Subletting. Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

24. Default and Remedies. If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

25. Renewal Option. Tenant shall have 10 option(s) to renew for 8 years each at the then-prevailing market rent upon at least nine months' notice. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI.

26. Subordination and Estoppel. This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

27. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Fairmont Jasper Business Park, 2763 Airport Parkway, Grand Rapids, MI 60119. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

28. Term. The term of this Lease shall be 8 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

29. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI.

30. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

DRAFT

31. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 26 months of Base Rent, to be held without interest. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI.

32. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

33. Maintenance and Repairs. Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

34. Alterations. Tenant shall not make any alterations costing more than $344,000 without Landlord's prior written consent, which shall not be unreasonably withheld. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

35. Insurance and Indemnity. Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

36. Assignment and Subletting. Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

37. Default and Remedies. If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

DRAFT

38. Renewal Option. Tenant shall have 39 option(s) to renew for 11 years each at the then-prevailing market rent upon at least nine months' notice. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

39. Subordination and Estoppel. This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

40. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Fairmont Jasper Business Park, 2763 Airport Parkway, Grand Rapids, MI 60119. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

41. Term. The term of this Lease shall be 3 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

42. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

43. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

44. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 24 months of Base Rent, to be held without interest. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

45. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

46. Maintenance and Repairs. Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

47. Alterations. Tenant shall not make any alterations costing more than $112,000 without Landlord's prior written consent, which shall not be unreasonably withheld. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

48. Insurance and Indemnity. Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

49. Assignment and Subletting. Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

50. Default and Remedies. If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

DRAFT

51. Renewal Option. Tenant shall have 2 option(s) to renew for 6 years each at the then-prevailing market rent upon at least nine months' notice. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

52. Subordination and Estoppel. This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

53. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Fairmont Jasper Business Park, 2763 Airport Parkway, Grand Rapids, MI 60119. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

54. Term. The term of this Lease shall be 8 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

55. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

56. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

57. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 40 months of Base Rent, to be held without interest. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI.

DRAFT

58. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

59. Maintenance and Repairs. Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

60. Alterations. Tenant shall not make any alterations costing more than $227,000 without Landlord's prior written consent, which shall not be unreasonably withheld. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

61. Insurance and Indemnity. Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

62. Assignment and Subletting. Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

63. Default and Remedies. If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

64. Renewal Option. Tenant shall have 38 option(s) to renew for 12 years each at the then-prevailing market rent upon at least nine months' notice. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

65. Subordination and Estoppel. This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

66. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Fairmont Jasper Business Park, 2763 Airport Parkway, Grand Rapids, MI 60119. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

67. Term. The term of this Lease shall be 8 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

68. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI.

69. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

70. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 27 months of Base Rent, to be held without interest. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

71. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

72. Maintenance and Repairs. Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

73. Alterations. Tenant shall not make any alterations costing more than $451,000 without Landlord's prior written consent, which shall not be unreasonably withheld. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI.

74. Insurance and Indemnity. Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

75. Assignment and Subletting. Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

76. Default and Remedies. If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

77. Renewal Option. Tenant shall have 29 option(s) to renew for 3 years each at the then-prevailing market rent upon at least nine months' notice. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

78. Subordination and Estoppel. This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

79. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Fairmont Jasper Business Park, 2763 Airport Parkway, Grand Rapids, MI 60119. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

80. Term. The term of this Lease shall be 10 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

81. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

82. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

83. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 23 months of Base Rent, to be held without interest. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

84. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Fairmont Jasper Business Park Owner LLC

By: Grace Thompson Title: President Date: 11/01/2023

_____

Fairway Manufacturing

By: Natalie Underwood Title: Authorized Signatory Date: 11/01/2023

Exhibit A - Property

Fairmont Jasper Business Park, 2763 Airport Parkway, Grand Rapids, MI 60119. Parcel containing approximately 30.38 acres, together with all improvements thereon.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only